



**NDIS Quality
and Safeguards
Commission**

McLean, Richard William

Registration ID: 4-433J-962

By email: rich@richmclean.com.au,

Dear Provider,

Notice of requirement to give information and documents under section 73C(4) of the *National Disability Insurance Scheme Act 2013 (Cth)* (NDIS Act)

I am writing to you about further information that is required regarding McLean, Richard William's application for registration with the NDIS Quality and Safeguards Commission (NDIS Commission). This request is in accordance with section 73C(4) of the NDIS Act.

Background

On 1 July 2019, the registration of McLean, Richard William transitioned to the jurisdiction of the NDIS Commission, and the following registration condition was imposed (under section 73G of the NDIS Act):

'Within 9 months after the date identified above (on your certificate of registration) as the end of the period for which the registration is in force, your organisation must take all action necessary for the approved quality auditor to submit the completed quality audit of your organisation to the Commission.'

The 9-month period identified in the condition of registration ended on **31 December 2020**.

Our records indicate that you lodged an application for registration, but have not undergone an audit by an approved quality auditor against the relevant NDIS Practice Standards. As a result, you are in breach of the above condition of registration.

The NDIS Commission wrote to you on 26 August 2022 outlining the actions you need to urgently take to remain registered. Your registration record does not indicate that you have progressed the required audit nor engaged an approved quality auditor.

Action required

To address this breach and progress the application for registration, you must take immediate steps to undergo an audit against the relevant NDIS Practice Standards that apply for the class(es) of support (registration group(s)) that you are seeking to be registered to deliver.

You cannot be granted registration unless you have been assessed by an approved quality auditor as meeting the applicable standards and other requirements prescribed by the NDIS Practice Standards (pursuant to section 73E(1)(c) of the NDIS Act). Section 73E(1) sets out the other requirements for registration.

T 1800 035 544
E : notice.return@ndiscommission.gov.au

PO Box 210
Penrith NSW 2750

www.ndiscommission.gov.au

Action due dates

You must provide the following information and documents by the dates indicated. Failure to do so may result in the refusal of MCLEAN, RICHARD WILLIAM's application for registration.

1. **By 5pm on 20 October 2022:** Advise the scheduled Stage 1 audit dates and auditor details by completing the [Notice of requirement to give information and documents](#) form, and return this to the NDIS Commission – either by email titled “4-433J-962 - Transitional Registration” to notice.return@ndiscommission.gov.au (please include your registration ID in the subject line of the email) or post addressed to:

Director, Provider Registration
NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

The audit dates should be scheduled as soon as possible to ensure that MCLEAN, RICHARD WILLIAM can provide the completed audit report by the date nominated at point 2 below.

2. **By 5pm on 25 November 2022:** Send a copy of the auditor's report of the completed audit to the NDIS Commission – either by email titled “4-433J-962 - Transitional Registration” to notice.return@ndiscommission.gov.au (please include registration ID in the subject line of the email) or post addressed to:

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If you are unable to provide the above information by the nominated dates, you may explain this and make any submission you would like taken into account before a decision is made about your application for registration, by email titled “4-433J-962 - Transitional Registration” to notice.return@ndiscommission.gov.au. However, unless submissions are received prior to the two dates identified above, a determination on the application for registration may be made without further notice.

If the application for registration is refused, you will no longer be able claim payment through the NDIS Provider Portal or create, amend or finalise service bookings.

Further, it is a breach of section 73B(2) of the NDIS Act for a person who is not a registered NDIS provider to provide support under an NDIS participant's plan if the NDIS rules require the person to be registered to provide the support under the plan. Such a breach can attract a civil penalty of up to \$55,500 for an individual and up to \$277,500 for a corporate entity.

If you no longer wish to proceed with your application for renewal

If you do not wish to proceed with your application, a key personnel can log onto the portal and submit a withdrawal request. Or you can complete the [Notice of requirement to give information and documents](#) form and return to notice.return@ndiscommission.gov.au by email titled “4-433J-962 - Transitional Registration” before **20 October 2022**. Please note that your NDIS registration will cease from the date the renewal application withdrawal is actioned by the NDIS Commission.

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If you do not intend to complete the registration application process, but are actively supporting National Disability Insurance Agency (NDIA) managed participants, please contact the NDIA to enable planning for the smooth transition of participant supports to alternative providers.

If you have already completed an audit report

If you are receiving this letter, but have already completed an audit, please check with your auditor that the audit report and their audit recommendation have been correctly submitted to the commission portal.

More information

For enquiries about this letter or if a key contact for MCLEAN, RICHARD WILLIAM needs assistance with the registration process, please contact the NDIS Commission Provider Registration via email to notice.return@ndiscommission.gov.au with the title "4-433J-962 - Transitional Registration", or by telephone on 1800 035 544.

For FAQs and specific registration requirements, please see the index on the following page.

Yours sincerely



Trudy Tweedie
Director, Provider Registration

29 September 2022

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Enquiry Type	Online Resource Link
Provider Application Pack	Provider application pack NDIS Quality and Safeguards Commission (ndiscommission.gov.au)
Find an approved quality auditor	Approved Quality Auditors NDIS Quality and Safeguards Commission (ndiscommission.gov.au)
Scope of Audit Resources	A scope of audit is received upon submission of your application. If you are unable to locate the initial scope of audit sent to you, please email notice.return@ndiscommission.gov.au to request one.
Evidence that auditors must receive in order to assess conformity with the verification module of the NDIS Practice Standards	NDIS Practice Standards: Verification Module - Required Documentation NDIS Quality and Safeguards Commission (ndiscommission.gov.au)
QRG for the NDIS Commission Portal and the NDIS Commission Applications Portal	NDIS Commission Portal Quick Reference Guides NDIS Quality and Safeguards Commission
Applications Portal	Applications Portal NDIS Quality and Safeguards Commission (ndiscommission.gov.au)
Provider responsibilities	Registered NDIS provider requirements NDIS Quality and Safeguards Commission (ndiscommission.gov.au)
Worker screening requirements	Worker screening requirements NDIS Quality and Safeguards Commission (ndiscommission.gov.au)
Supporting self-managed and plan managed participants	Participants who choose to self-manage the funding for supports in their plan can access those supports from any provider, registered or unregistered. Participants who choose to use a registered plan management provider to manage the funding for supports in their plan can access those supports from registered or unregistered providers.
Agency managed providers	Participants whose funding for supports in their plan are managed by the National Disability Insurance Agency (NDIA) can only access those supports from registered NDIS providers.
NDIS Language Translation Resources	Languages NDIS